

25STCV18427 25STCV18427

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 25STCV18427 Hearing Date: July 31, 2026 Dept: 732

Lazaro Zarate Martinez v. Joel Solano., et al.

Friday, July 31, 2026

CASE NUMBER: 25STCV18427

UNOPPOSED

Cross-Defendants

City of Los Angeles Department of Water and Power and Jeannine Borrás' Motion
for Good Faith Settlement Determination.

Facts:

This is a wrongful death action arising from motor vehicle negligence. The Complaint alleges as follows. Decedent Leticia Martinez Perez ("Decedent") was struck and killed in an auto collision caused by the negligent operation of a vehicle by Defendant Joel Solano ("Defendant"). (Complaint at p. 1.) The present action is brought by Decedent's son, Plaintiff Lazaro Zarate Martinez ("Plaintiff").

Procedural History: Plaintiff

filed the Complaint on June 25, 2025, alleging two causes of action:

1.

Motor Vehicle Negligence

2.

General Negligence

Plaintiff

filed the present good faith settlement application on May 13, 2026. No opposition has been filed.

On

June 10, 2026, this court continued hearing on the present motion to permit additional briefing on the court's authority to determine a good faith settlement absent an alleged joint tort-feasor or co-obligor.

Plaintiff

filed additional briefing and a supplemental declaration on July 16, 2026.

Analysis

I.

GOOD FAITH SETTLEMENT DETERMINATION

Code of Civil Procedure § 877.6(a)(1)
provides:

Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005. Upon a showing of good cause, the court may shorten the time for giving the required notice to permit the determination of the issue to be made before the commencement of the trial of the action, or before the verdict or judgment if settlement is made after the trial has commenced.

Code of Civil Procedure § 877(c) in turn
provides:

A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or

co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.

A good faith settlement determination also reduces the claims against the nonsettling defendants in the amount stipulated by the settlement. (See Code Civ. Proc. § 877(a).)

Where a motion for determination of good faith settlement is uncontested, a "barebones" motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient to support a good faith determination. (See *City of Grand Terrace v. Superior Court* (1987) 192 Cal. App. 3d 1251, 1261.)

Plaintiff Lazaro

Zarate Martinez ("Plaintiff") seeks approval of a settlement entered with Defendant Joel Solano ("Defendant") in the amount of \$12,500, half of the available policy limits. (Motion at p. 3.) Plaintiff states that there are two other potential heirs to Decedent Leticia Martinez Perez ("Decedent") entitled to policy proceeds, one of whom he contends has filed no claim and whose claims are therefore time-barred, and another minor heir who cannot be located. (Motion at pp. 3–4.) Plaintiff purports to accept the settlement on behalf of the absent minor claimant, which leaves \$12,500 for them to be satisfied from the settlement. (Motion at p. 3.)

This court in its order of June 10, 2026, continued hearing on the present motion to permit the filing of a requisite declaration concerning the background of the case, and to solicit additional briefing on the question whether this is a compromise upon which the court may make a good faith settlement determination in the absence of an alleged joint-tortfeasor or co-obligor. Plaintiff has since submitted additional materials, confirming, despite his arguments, that no such approval can be made.

The right to a good faith settlement hearing is held by "[a]ny party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract." (Code Civ. Proc. § 877.6, subd. (a).) And the chief beneficiary of a good faith settlement

determination is “one or more of a number of tortfeasors claimed to be liable for the same tort, or to one or more other co-obligors mutually subject to contribution rights,” who by such determination are “discharge[d] from all liability for any contribution to any other parties.” (Code Civ. Proc. § 877, subd. (b).) But here, Defendant Joel Solano is the only tortfeasor alleged in the Complaint, and none have since been added. The parties are thus not entitled to a good faith settlement determination under Code of Civil Procedure § 877.6.

Plaintiff in his supplemental materials briefly argues that if approval cannot be had under Code of Civil Procedure § 877.6, it can be had under Code of Civil Procedure § 372, which authorizes a guardian ad litem to compromise a claim for a minor claimant. (Supp. Brief at p. 3.) Thus Plaintiff indicates that if his motion to approve good faith settlement fails, he wishes to continue on the grounds that he is seeking approval of the settlement on behalf of the other minor heir, who cannot be located.

No such relief can be granted. Code of Civil Procedure § 372 confirms the power of a guardian ad litem, or guardian or conservator of the minor’s estate, to settle claims of a minor with court approval. (Code Civ. Proc. § 372, subd. (f).) But the other minor heir is not a party to this action, and no guardian ad litem has been appointed for them. (Code Civ. Proc. § 372, subd. (a)(1).) Plaintiff does not contend that he is the guardian or conservator of the minor heir’s estate.

While a minor whose compromise is sought to be approved is not necessarily joined as a party to the action (CRC Rule 7.950 [permitting compromise of “a minor’s disputed claim,” as distinct from “a pending action or proceeding to which a minor . . . is a party”]), said approval must be obtained either pursuant to Code of Civil Procedure § 372 — i.e. through a guardian ad litem or guardian or conservator of the estate (Code Civ. Proc. § 372, subd. (f)) — or by a parent of the minor. (See Prob. Code § 3500, subd. (a)(2).) Plaintiff has not shown that he fits into either category. Plaintiff has thus not satisfied the procedural prerequisites for approval of a minor’s compromise or offered any indication that he has standing or capacity to seek such approval on behalf of a minor co-heir.

The motion is therefore DENIED.

Superior Court of California

County of Los Angeles

Department 732

LAZARO

ZARATE MARTINEZ.,

Plaintiffs

v.

JOEL SOLANO., et al.,

Defendants.

Case No.:

25STCV18427

Hearing Date: July 31, 2026

[TENTATIVE] RULING RE:

Plaintiff

:Lazaro Zarate Martinez' Motion for Good Faith Settlement Determination with
Defendant Joel Solano

Plaintiff :Lazaro Zarate Martinez' Motion for Good Faith
Settlement Determination with Defendant Joel Solano is DENIED.

Plaintiff to give notice.

Dated: July 31, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court